

DEED OF BOOKING CANCELLATION, RECEIPT SURRENDER & EX-GRATIA SETTLEMENT

STRICTLY EXECUTED UNDER TRIPARTITE MASTER LEGAL DEED (SECTIONS 2.1 & 2.9) & COMPANIES ACT 2013

This Deed of Cancellation, Receipt Surrender and Full & Final Settlement is executed on this _____ day of _____, 2026 at Gorakhpur, Uttar Pradesh, by and between:

FIRST PARTY (Developer / Company)	APS DREAM HOMES PVT. LTD. (CIN: U70109UP2022PTC163047), a Company incorporated under the Companies Act, 2013, having its Registered Office at 1st Floor, APS Building, Near Ganpati Lawn, Singhariya Chauraha, Kunraghat, Gorakhpur - 273008, represented by its Authorized Signatory (hereinafter referred to as the " Company / First Party ").		
SECOND PARTY (Customer / Allottee)	Mr./Mrs./Ms. _____ S/o, W/o, D/o: _____ Permanent Address: _____ Mobile No: _____ Aadhaar / PAN No: _____		
1. PLOT ALLOTMENT & BOOKING PARTICULARS			
Project / Colony	_____	Plot No. & Block	Plot: _____ Block: _____
Super / Carpet Area	_____ Sq. Ft.	Original Booking Date	____ / ____ / 20____
Total Agreed Value	? _____	Token Amount Deposited	? _____
Original Booking Receipt No.	_____		
2. VOLUNTARY CANCELLATION & MANDATORY SURRENDER OF ORIGINAL DOCUMENTS			

2.1 Voluntary Termination: The Second Party had booked the aforesaid plot by paying an initial booking/token advance. Due to unforeseen personal and financial constraints, and considerable lapse of time, the Second Party has formally and voluntarily applied to terminate the booking without any coercion or duress.

2.2 Mandatory Surrender of All Original Papers: The Second Party hereby acknowledges, physically delivers, and irrevocably surrenders all original documentation to the Company, including:

- **Original Booking Form / Application Form** issued by the Company;
- **All Original Payment Receipts**, Token Advances, Money Receipts, and Bank Slips;
- **Original Provisional Allotment Letter** and Site Demarcation papers (if any);
- **Original Tripartite Master Deed** or customer agreements issued.

2.3 Nullification of Duplicate Claims: The Second Party explicitly confirms that no copies, digital images, photocopies, or duplicates have been retained or assigned to any third party. Any future production of such documents shall be deemed void, illegal, and fraudulent.

3. ACKNOWLEDGEMENT OF NON-REFUNDABLE TOKEN POLICY (MASTER DEED SECTIONS 2.1 & 2.9)

STATUTORY FORFEITURE DECLARATION: Both parties confirm that in accordance with **Sections 2.1 and 2.9 of the official Tripartite Master Legal Deed**, the initial booking token amount (minimum 25% / ₹51,000) is strictly **Non-Refundable / ???-????? ?????** under all circumstances to indemnify the Company against administrative overheads, brokerages, site development, and plot inventory blockage. The Second Party was bound to clear 25% of the plot cost within 15 calendar days, failing which the token stands legally forfeited.

4. SPECIAL EX-GRATIA / HUMANITARIAN PARTIAL SETTLEMENT

4.1 Ex-Gratia Settlement Amount: Notwithstanding the strict statutory forfeiture clause stated above, upon the special written appeal, medical/financial hardships, and compassionate humanitarian request of the Second Party, the First Party (Company), as a pure matter of goodwill and without establishing any legal precedent, has agreed to release an ex-gratia settlement sum of:

SETTLEMENT AMOUNT: ? _____/-
(In Words: _____)

4.2 Payment Realization Details: The aforesaid ex-gratia amount is released via:

☐ Cheque ☐ Bank Transfer (NEFT / RTGS / IMPS / UPI) ☐ Cash

Cheque / UTR / Transaction No.: _____ Dated: ____ / ____ / 2026

Drawn on Bank & Branch: _____

5. FULL, FINAL & IRREVOCABLE DISCHARGE (NO FUTURE CLAIMS)

5.1 Complete Release: Upon receipt of the settlement amount in Clause 4.1, the Second Party hereby permanently, completely, and irrevocably discharges, indemnifies, and holds harmless **APS DREAM HOMES PVT. LTD.**, its Directors, Shareholders, Promoters, and Associates from all liabilities, rights, claims, suits, charges, or demands whatsoever.

5.2 Waiver of Appreciation & Disputes: The Second Party explicitly waives any claim toward market price appreciation, penal interest, compensation, or allotment rights over Plot No. _____. The Second Party covenants never to institute any litigation before any Civil Court, RERA Authority, Consumer Commission, Police, or Arbitration Tribunal in connection with this booking.

5.3 Gorakhpur Jurisdiction: This Deed is executed under the laws of India and shall be subject to the exclusive jurisdiction of the competent Courts at **Gorakhpur, Uttar Pradesh**.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE SET THEIR HANDS AND SEALS ON THE DATE FIRST ABOVE WRITTEN.

SIGNATURE / THUMB IMPRESSION

FOR APS DREAM HOMES PVT. LTD.

SECOND PARTY (ALLOTTEE / CUSTOMER)
Name: _____
Date: ____ / ____ / 2026 Place: Gorakhpur

(AUTHORIZED SIGNATORY & COMPANY SEAL)
First Party / Developer
Date: ____ / ____ / 2026 Place: Gorakhpur

WITNESSES (ATTESTING IN PRESENCE OF BOTH PARTIES)

WITNESS 1:
Name: _____

S/o, D/o: _____

Address: _____

Mobile: _____

Signature: _____

WITNESS 2:
Name: _____

S/o, D/o: _____

Address: _____

Mobile: _____

Signature: _____
